

attributes of the device it described, as identified from the claimed features other than the purpose feature, was already enough on its own to give rise to suitability for the indicated purpose.

D. Inventive step

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1. Introduction

An invention shall be considered as involving an **inventive step** if, having regard to the **state of the art**, it is not **obvious** to a **person skilled in the art** (Art. 56, first sentence EPC). The "state of the art" for the purposes of considering inventive step is as defined in Art. 54(2) EPC. It does not include later published European applications referred to in Art. 54(3) EPC. Such earlier applications are part of the state of the art only when considering novelty and not when considering inventive step (see Guidelines G-IV, 5.1 and G-VII, 2 – March 2022 version).

Technical progress is not a requirement for patentability under the EPC. Therefore, technical progress shown in comparison with marketed products as an alleged support for inventive step cannot be a substitute for the demonstration of inventive step with regard to the relevant closest state of the art (see T 181/82, OJ 1984, 401; T 164/83, OJ 1987, 149; T 317/88; T 385/94; T 662/96; T 850/02). Technical progress is relevant – to a limited degree – only if it can be seen as an indication of inventive step (T 1074/96).

The extent of the monopoly conferred by a patent should correspond to and be justified by the technical contribution to the art. This general principle of law, applied in T 409/91 (OJ 1994, 653) and T 435/91 (OJ 1995, 188) (albeit to determine the scope of protection justified under Art. 83 and Art. 84 EPC 1973), also applies to decisions under Art. 56 EPC 1973, because everything covered by a legally valid claim has to be inventive (see also T 1060/11). Otherwise the claim has to be amended, by deleting anything obvious to ensure that the monopoly is justified (T 939/92, OJ 1996, 309; T 930/94; T 795/93; T 714/97).

2. Problem and solution approach

Art. 56 EPC gives a negative definition of the "inventive step" required under Art. 52(1) EPC, by setting out that an invention shall be considered as involving an inventive step "if, having regard to the state of the art, it is not obvious to a person skilled in the art". In order to assess inventive step in an objective and predictable manner, the so-called "problem-solution approach" was developed, consisting of the following stages:

- (a) determining the "closest prior art",
- (b) assessing the technical results (or effects) achieved by the claimed invention when compared with the "closest state of the art" determined,
- (c) defining the technical problem to be solved, the object of the invention being to achieve said results; and
- (d) considering whether or not the claimed solution, starting from the closest prior art and the objective technical problem, would have been obvious to the skilled person (G 1/19, OJ 2021, A77, point 26 of the Reasons; see also e.g. T 939/92, OJ 1996, 309; T 15/93; T 433/95; T 917/96; T 631/00; T 423/01; T 215/04; T 1621/06; T 1183/06; T 824/07; see also Guidelines G-VII, 5 – March 2022 version).